

The Bihar Local Self-Government (Amending and Validating) Act, 1954

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The Bihar Local Self-Government (Amending and Validating) Act, 1954

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The Bihar Local Self-Government (Amending and Validating) Act, 1954

Act 7 of 1954

Published on 13 March 1954

Commenced on 13 March 1954

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The Bihar Local Self-Government (Amending and Validating) Act, 1954

(Bihar Act

7 of 1954

)

Governor's assent first published in the Bihar Gazette, Extraordinary of the 13th March, 1954

An Act to amend the Bihar and Orissa Local Self-Government Act of 1885.

Whereas it is expedient to amend the Bihar and Orissa Local Self-Government Act of 1885 (Bengal Act III of 1885), in the manner hereinafter appearing.

It is hereby enacted as follows:-

1.

Short title and commencement.

(1)
This Act may be called the Bihar Local Self-Government (Amending and Validating) Act, 1954.

(2)
It shall come into force at once:
Provided that Section 13 shall be deemed to have come into force on the 1st January, 1946.

2.

to 12.
[Amendments incorporated in the Bihar and Orissa Local Self-Government Act of 1885].

13.
Validation of term of office of members.

- Notwithstanding anything to the contrary contained in Section 13 or in any other provision of the Bihar and Orissa Local Self-Government Act of 1885 (Bengal Act III of 1885), the term of office of a member of any District Board or Local Board elected or appointed before the commencement of the Bihar Local Self-Government (Amendment) Act, 1950 (Bihar Act XL of 1950), shall be held to include any period which may elapse between its expiry and the date of the first meeting of the newly constituted District Board or Local Board.

14.
Transference to the District Education Fund of sums granted for the purpose of education and credited to the District Fund before the 27th January, 1954.

(1)
Notwithstanding anything contained in Section 54-A and Section 54-B, the District Board shall be responsible for the payment, out of the sums granted to the District Board by the State Government for the purpose before the 27th January, 1954, of the salaries and allowances of masters and assistant masters and of the establishments of schools maintained and managed by the District Board under Section 62 and Section 63 accruing due up to and including the 31st March, 1954. All such sums remaining unspent on the 30th April, 1954, shall be credited to the District Education Fund.

(2)
All sums granted to the District Board by the State Government before the 27th January, 1954, for purposes of education other than that referred to in subsection (1), and remaining unspent on that date shall be credited to the District Education Fund.

(3)
The Chairman shall furnish a detailed account of the unspent balance of all sums granted by the State Government for purposes of education before the 27th January, 1954, in accordance with such rules as may be made by the State Government in this behalf.

15.
Repeal and savings.

(1)
The Bihar Local Self-Government (Amending and Validating) Ordinance, 1954 (Bihar Ordinance No. 1 of 1954), is hereby repealed.

(2)
Notwithstanding such repeal, anything done or any action taken in the exercise of any power conferred by or under the said Ordinance shall be deemed to have been done or taken in the exercise of the powers conferred by or under this Act, as if this Act were in force on the day on which such things or action was done or taken.

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